

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior Judge Walker D. Miller**

Courtroom Deputy: Bernique Abiakam
Court Reporter: Kara Spitler

April 21, 2010

Civil Action No. 06-cv-01142-WDM-MJW

Parties:

KARYN S. PALGUT,

Plaintiff,

Counsel:

Donna E. Dell'Olio
Ian David Kalmanowitz

v.

CITY OF COLORADO SPRINGS,

Defendant.

Steven W. Moore
William B. Bain

COURTROOM MINUTES

Jury Trial Day 7

8:22 a.m. Court in session.

Counsel and parties present.

Discussion regarding jury instructions.

Plaintiff's proposed jury instruction 14a is modified as specified.

Plaintiff's proposed jury instruction 56a is modified as specified.

9:27 a.m. Court in recess.

9:43 a.m. Court in session.

Further discussion regarding jury instructions.

Argument heard regarding specific claims under Defendant's Oral Motion for Judgment as a Matter of Law Under Rule 50.

9:58 a.m. Motion is GRANTED regarding Defendant's Oral Motion for Judgment as a Matter of Law Under Rule 50, as it relates to the consumer credit reporting act claim which is dismissed as a matter of law.

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9:59 a.m. Further Rule 50 argument by Mr. Moore regarding additional claims.

The Court advises counsel that further argument on the Rule 50 motion will be heard after the plaintiff's rebuttal witness has been heard.

10:08 a.m. Court in recess.

10:12 a.m. Court in session.

10:15 a.m. Jury present.

The Court advises the jury regarding remaining trial schedule

10:17 a.m. Plaintiff's rebuttal witness, Justin Spaulding, called and sworn.
Direct examination begins by Ms. Dell'Olio.

10:18 a.m. Bench conference regarding rebuttal witness testimony.

10:29 a.m. The Court advises jury that objection is SUSTAINED and that the witness will be limited in testimony.

10:30 a.m. Continued direct examination by Ms. Dell'Olio.

10:33 a.m. Bench conference regarding direct examination questioning.

Objection OVERRULED.

10:35 a.m. Continued direct examination by Ms. Dell'Olio.

10:39 a.m. Cross examination begins by Mr. Moore.

10:40 a.m. Redirect examination by Ms. Dell'Olio.

10:42 a.m. Witness excused.

10:43 a.m. Jury excused.

The Court advises counsel regarding additional corrects to the jury instructions and verdict form.

10:45 a.m. Court in recess.

10:46 a.m. Court in session.

Further discussion regarding changes to jury instructions and verdict form.

10:52 a.m. Argument by Mr. Moore resumes on Defendant's Oral Motion for Judgment as a Matter of Law Under Rule 50.

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ORDERED: Defendant's Oral Motion for Judgment as a Matter of Law Under Rule 50 is taken UNDER ADVISEMENT, as specified.

11:17 a.m. Jury present.

11:18 a.m. Closing argument by Mr. Kalmanowitz.

11:44 a.m. Closing argument by Mr. Moore.

12:05 p.m. Rebuttal closing by Ms. Dell'Olio.

12:12 p.m. Jury instructions read.

12:38 p.m. CSO sworn.

12:42 p.m. Jury excused to begin deliberations.

12:43 p.m. Court in recess.

4:08 p.m. Court in session.

Counsel and parties present.

Discussion regarding Jury Question marked Court Exhibit 1.

Counsel stipulate to an answer which is tendered to the jury.

4:18 p.m. Court in recess.

4:41 p.m. Court in session.

4:44 p.m. Jury present.

4:45 p.m. Verdict read.

4:46 p.m. Verdict accepted.

Closing remarks from the Court.

4:48 p.m. Jury excused.

Final remarks from the Court.

4:49 p.m. Court in recess.

Jury Trial concluded.

Total time in court: 4 hours, 18 minutes.